

# SENATE . . . . . No. 3152

---

## The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court  
(2025-2026)

SENATE, July 9, 2026.

The committee on Environment and Natural Resources to whom was referred the petition (accompanied by bill, Senate, No. 547) of Joanne M. Comerford, Michael O. Moore, James B. Eldridge and Dylan A. Fernandes for legislation to establish an ecologically-based mosquito management program in the Commonwealth to protect public health, report the accompanying bill (Senate, No. 3152).

For the committee,  
Rebecca L. Rausch

# SENATE . . . . . No. 3152

---

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act establishing an ecologically-based mosquito management program in the Commonwealth to protect public health.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 252 of the General Laws, as appearing in the 2024 Official Edition,  
2 is hereby amended by striking out section 2 and inserting in place thereof the following section:-

3           Section 2. (a) As used in this chapter, the following words shall, unless the context  
4 clearly requires otherwise, have the following meanings:

5           “Adulticiding”, the use of pesticides intended to kill adult mosquitoes.

6           “Disease vector”, a species of mosquito that amplifies or transmits an illness, including  
7 Eastern Equine Encephalitis or West Nile Virus, among human or other animal populations by  
8 salivary gland fluid injection during biting.

9           “Larviciding”, the use of pesticides intended to kill larval or pupal mosquitoes.

10          “PFAS”, a class of fluorinated organic chemicals containing at least one fully fluorinated  
11 carbon atom.

“Source reduction”, reducing or eliminating the ability of larval habitats to support the development of larvae, including, but not limited to, removing artificial sources of standing or stagnant water and restoring natural flows and wetland systems to improve access by predators, water quality and overall aquatic health.

(b) There shall be a mosquito management board, in this chapter called the board, which shall consist of:

(1) 1 employee of the department of environmental protection designated by its commissioner who shall serve as chair; 1 employee of the department of agriculture designated by its commissioner; 1 employee of the department of fish and game designated by its commissioner; and 2 employees of the department of public health designated by its commissioner, 1 of whom shall have expertise in environmental health; and

(2) 6 members designated by the secretary of energy and environmental affairs, including: 1 person representing a statewide land conservation organization; 1 person representing a regional or statewide river protection organization; 1 person representing beekeepers; 1 person representing a group that works to protect native pollinators; 1 person who is an expert in pesticides and mosquito control; and 1 person who is an ecological risk assessor with a background in ecotoxicology. Each member designated in this paragraph shall be designated for a term of 4 years, except for persons designated to fill vacancies, who shall serve for the remainder of the unexpired term, and shall be eligible for reappointment; provided, however, that no member shall serve for more than 2 full terms.

The designation of any member of said board may be revoked at any time by the designator, and in such case or in case of the resignation or disability of any member, their

successor shall be designated in the same manner as in the original designation. Members shall be entitled to reasonable travel and other expenses incurred in the performance of their duties.

(c) The board shall regulate and oversee all disease vector mosquito management activities in the commonwealth and prepare a science-based statewide integrated pest management mosquito-borne disease management plan, hereinafter called the plan. State agencies and subdivisions, including but not limited to mosquito control districts, mosquito control projects and municipalities, shall adhere to the plan when conducting mosquito management activities. The plan shall provide an ecologically sustainable approach to mosquito population management that includes, but is not limited to, the following provisions:

(1) preventative measures to protect humans and livestock from mosquito-borne diseases, including surveillance, monitoring and public education on eliminating breeding sites and taking personal protective actions, which shall be emphasized in the plan;

(2) source reductions, which shall be the preferred management measures; and

(3) to the extent necessary and to be implemented only after preventative measures and source reduction efforts have been implemented, larvicides and adulticides; provided, however, that aerial application of mosquito-control adulticides is prohibited; provided further, that ground adulticide applications shall be limited to locations where mosquito-borne disease is detected in mosquitoes, other animals or humans in the current year; and provided further, that the use of larvicides or adulticides containing PFAS or other fluorinated compounds is prohibited.

(d) The board shall post a public notice of availability of the draft plan in the Massachusetts environmental policy act office's environmental monitor and provide a 60-day

public comment period. The board shall duly consider and respond to comments received and finalize the plan. The plan shall be updated every 3 years, or more frequently, with public review. Annual operational plans and practices of any public entity conducting mosquito management activities shall be consistent with the statewide plan and revised annually based on efficacy data and mitigation of non-target impacts.

(e) Additionally, the board shall: (i) annually review and certify integrated pest management mosquito management plans submitted by mosquito districts, municipalities and any other public agency conducting mosquito management activities; (ii) ensure consistency with the statewide plan; (iii) create policies and oversee procedures for monitoring and responding to vector-borne diseases; (iv) advise the governor when a public health emergency arises due to disease-bearing mosquitoes imminently threatening to public health; (v) authorize and carry out investigations; (vi) carry out disease-bearing mosquito management programs when a significant area of the state is affected; (vii) provide education materials on mosquito borne diseases, best practices for eliminating artificial standing water and personal protection measures to avoid mosquito bites; (viii) ensure that all municipalities are provided with access to mosquito surveillance upon request and payment of reasonable fees; (ix) establish and maintain a process for municipalities and landowners to opt out of larviciding or adulticiding, except following a public health emergency declared by the governor that includes a finding that disease-bearing mosquitoes are present at high or critical risk levels determined by the department of public health in the locations to be treated; (x) keep appropriate records of board operations and activities as well as all mosquito management efforts in the commonwealth; and (xi) annually, on or before November 1, publish on the website of the department of

78 environmental protection a report on the activities and expenditures of the board and mosquito  
79 control districts or projects and the efficacies and impacts of such work.

80 SECTION 2. Section 5A of said chapter 252, as so appearing, is hereby amended by  
81 striking out, in lines 82 and 88, in each instance, the following words:- state reclamation.

82 SECTION 3. Section 5B of said chapter 252, as so appearing, is hereby amended by  
83 striking out, in line 22, the following words:- state reclamation.

84 SECTION 4. Said section 5B of said chapter 252, as so appearing, is hereby further  
85 amended by striking out, in line 25, the following word:- reclamation.

86 SECTION 5. Section 14C of said chapter 252, as so appearing, is hereby amended by  
87 striking out, in lines 4 and 5, the following words:- state reclamation.

88 SECTION 6. Section 24 of said chapter 252, as so appearing, is hereby amended by  
89 striking out, in line 1, the words “state reclamation” and inserting in place thereof the following  
90 words:- mosquito management.